
CITY OF GALLATIN COUNCIL MEETING

April 19, 2022

6:00 pm

Dr. J. Deotha Malone
Council Chambers

- Call to Order – Mayor Brown
- Invocation
- Pledge of Allegiance – Vice Mayor Fennell
- Roll Call: Alexander – Fann – Vice Mayor Fennell– George – Hayes – Love – Overton
- Approval of Minutes: April 05, 2022 City Council Meeting
- Public Recognition on Agenda-Related Items
- Mayor's Comments

AGENDA

1. **Second Reading Ordinance No. O22Ø3-12** An ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning 14.67 +/- acres from the R10- Medium Density Residential District to R-8 PRD – Medium Density Residential Planned Residential Development District with a Preliminary Master Development Plan for the Holland property, located west of Center Street and north of Demoss Street; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilman Alexander)**
2. **Second Reading Ordinance No. O22Ø3-15** An ordinance of the City of Gallatin, Sumner County, Tennessee, approving an Amended Preliminary Master Development Plan for Lowe's and a Preliminary Master Development Plan for Double Star Hotel, a four (4) story, 71,876 square foot hotel, on a 3.76 +/- acre lot (Tax Map 136, Parcel 038.00), located south of Nashville Pike and east of Browns Lane; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilman Hayes)**
3. **Second Reading Ordinance No. O22Ø3-16** Ordinance appropriating \$32,150.00 from various budget lines for Gallatin EDA vehicle purchase **(Councilwoman Love)**
4. **Second Reading Ordinance No. O22Ø4-18** Ordinance appropriating \$687,741.00 from Donations from Businesses to Gateway Drive Extension Construction **(Councilman Overton)**
5. **Resolution No. R22Ø3-30** A resolution of the City of Gallatin, Sumner County, Tennessee, adopting a Plan of Services upon the annexation of a .70 +/- mile long segment of Big Station Camp Boulevard right-of-way, extending from Vietnam Veterans Boulevard (SR 386) to south of Lakeland Drive, comprising approximately 13.6 acres, and providing for an effective date (ANNX-2022-0021) **(Councilman Hayes)**
6. **Resolution No. R22Ø3-31** A resolution of the City of Gallatin, Sumner County, Tennessee, annexing of a .70 +/- mile long segment of Big Station Camp Boulevard right-of-way, extending from south of Vietnam Veterans Boulevard (SR 386) to south of the intersection of Lakeland Drive and Big Station Camp Boulevard, comprising approximately 13.6 acres; authorizing the annexed right-of-way to be indicated on the Official Zoning Atlas; authorizing the assignment of annexed area to a council district; repealing conflicting ordinances and resolutions; providing for severability, and providing for an effective date. **(Councilman Hayes)**

7. Resolution No. R2204-37 Resolution temporarily adjusting certain rates of pay (**Councilman Fann**)
8. Resolution No. R2204-38 Resolution re-appointing Richie Harville as board member of the Gallatin Economic Development Agency Board (**Councilwoman George**)
9. Resolution No. R2204-43 Resolution amending Gallatin Personnel Rules and Regulations relating to Sick Leave Pool, Rule 16, Section 16-3(u) (**Vice Mayor Fennell**)

- Other Business
- Public Recognition on Non-Agenda-Related Items
- Adjourn

The City of Gallatin City Council Meeting

Tuesday, April 5, 2022

The Gallatin City Council met in regular session on Tuesday, April 5, 2022 in the Dr. J. Deotha Malone Council Chambers Gallatin City Hall. Mayor Paige Brown called the meeting to order at 6:00 P.M. Councilman John D. Alexander led the opening prayer and Councilman Steve Fann led the pledge of allegiance.

Deputy Clerk Danielle Alexander called the roll call and the following were present:

Present:

Mayor Paige Brown
Councilman John D. Alexander
Councilman Steve Fann
Councilwoman Eileen George
Councilman Craig Hayes
Councilwoman Lynda Love
Councilman Jimmy Overton

Absent:

Vice Mayor Shawn Fennell

Department Heads and Others Present:

Chuck Stuart, Building Official
Susan High-McAuley, City Attorney
Nick Tuttle, City Engineer
Bill McCord, City Planner
Danielle Alexander, Deputy Clerk
James Fenton, EDA Director
Rachel Nichols, Finance Director

Scott Woodward, Assistant Fire Chief
Connie Flood, H.R. Director
Lori Smiley, I.T. Director
David Brown, Parks & Rec. Director
Don Bandy, Police Chief
David Kellogg, Public Utilities Director
Richard Depriest, Public Works Director

Approval of Minutes

Mayor presented the March 15, 2022 City Council minutes for approval.

Councilman Overton made motion to approve; Councilman Alexander seconded.
Motion carried with 6 ayes and 0 nays.

Public Recognition on Agenda-Related Items

Mayor Brown opened public recognition on agenda-related items.

- Bob Maiola of 425 Paisley Way spoke in opposition to agenda Item #3.
- Belinda Black of 514 Demoss Street spoke in opposition to agenda Item #3.

With no one else wishing to speak public recognition on agenda-related items was closed.

Mayor's Comments

- Mayor thanked Gallatin Fire Department for sending fire aid to Sevier County.
- Mayor complimented Friends of Gallatin Miracle Park on the Easter Egg Hunt.
- Mayor presented the Tennessee Public Works Magazine with Miracle Park on the cover and a two page spread.

Mayor announced the following events:

- Coffee & Connect with Gallatin Public Works on April 6, 2022.
- Boutique Bazaar's 9th Annual Spring Market on April 8-9, 2022.
- Gallatin FUMC Easter Egg Hunt on April 9, 2022.
- Northfield Church Easter Egg Hunt on April 9, 2022.
- Green Wave Steak Dinner & Auction on April 9, 2022.
- Good Friday is April 15, 2022.
- Gallatin Farmer's Market Spring Plant Sale will be April 16, 2022.
- Mayor presented a Proclamation recognizing Kara DeFrize for her many accomplishments and being a role model to others.

- Mayor presented a Proclamation recognizing ZJ Johnson for his many accomplishments and being a role model to others.

Agenda

1. Dangerous Building Complaint and Show Cause Hearing – 129 Ross Avenue – 113F B 006.00 000 – Braulio Leyva Delgado, Owner.

Building Official Chuck Stuart presented this complaint and stated this building was dangerous and unfit for human occupation and use.

City Attorney Susan High-McAuley asked if there were any owners or representatives present. With no one coming forward the hearing continued.

Councilwoman Love made motion to declare this a dangerous building and unfit for human occupation and use and gave thirty days to dismantle or bring up to codes; Councilman Overton seconded. Motion carried with 6 ayes and 0 nays.

2. Dangerous Building – 1359 S. Water Avenue – 115L A 020.00 000 – Kamran Kami Mehr & Mehramfar Mohammad, Owners.

Building Official Chuck Stuart presented this complaint and stated this building was dangerous and unfit for human occupation and use.

Owner of the property, Kamran Kami Mehr of 146 Gatone Drive, Hendersonville, TN 37075 provided an explanation for the condition of the building and asked council not to tear down.

City Planner Bill McCord explained the use for this property.

Council discussed the easement on this property.

Councilman Overton made motion to declare this a dangerous building and unfit for human occupation and use and gave thirty days to demolish or bring up to codes; Councilwoman George seconded. Motion carried with 6 ayes and 0 nays.

City Engineer Nick Tuttle stated he would look into any agreements with TDOT.

3. Ordinance #O2203-12 – Public Hearing

Councilman Alexander presented this ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning 14.67 (+/-) acres from the R10 – Medium Density Residential District to R-8 RED – Medium Density Residential Planned Residential Development District with a Preliminary Master Development Plan for the Holland property, located west of Center Street and north of Demoss Street; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date.

Mayor opened public hearing.

With no one wishing to speak public hearing was closed.

4. Ordinance #O2203-15 – Public Hearing

Councilman Hayes presented this ordinance of the City of Gallatin, Sumner County, Tennessee, approving an Amended Preliminary Master Development Plan for Lowe's and a Preliminary Master Development Plan for Double Star Hotel, a four (4) story, 71,876 square foot hotel, on a 3.76 (+/-) acre lot (Ta Map 136, Parcel 038.00), located south of Nashville Pike and east of Browns Lane; repealing conflicting ordinances; providing for severability, and providing for an effective date.

Mayor opened public hearing.

- Pascal Jouvence of 1335 Long Hollow Pike voiced concerns with the development.

With no one else wishing to speak public hearing was closed.

5. Resolution #R2203-30 – Public Hearing

Councilman Hayes presented this resolution of the City of Gallatin, Sumner County, Tennessee, adopting a Plan of Services upon the annexation of a .70 (+/-) mile long segment of Big Station Camp Boulevard right-of-way, extending from Vietnam Veterans Boulevard (SR 386) to south of Lakeland Drive, comprising approximately 13.6 acres, and providing for an effective date. (ANNX-2022-0021)

Mayor opened public hearing.

With no one wishing to speak public hearing was closed.

6. Resolution #R2203-31 – Public Hearing

Councilman Hayes presented this resolution of the City of Gallatin, Sumner County, Tennessee, annexing of a .70 (+/-) mile long segment of Big Station Camp Boulevard right-of-way, extending from south of Vietnam Veterans Boulevard (SR 386) to south of the intersection of Lakeland Drive and Big Station Camp Boulevard, comprising approximately 13.6 acres; authorizing the annexed right-of-way to be indicated on the Official Zoning Atlas; authorizing the assignment of annexed area to a council district; repealing conflicting ordinances and resolutions; providing for severability, and providing for an effective date.

Mayor opened public hearing.

With no one wishing to speak public hearing was closed.

7. City of Gallatin Plans of Services Progress/Status Report – Public Hearing

Mayor opened public hearing.

- Michelle Jouvence of 1335 Long Hollow Pike voiced concerns with the plans of services progress/status report.

With no one else wishing to speak public hearing was closed.

8. Ordinance #O2203-17 – Second Reading

Councilman Alexander presented this ordinance appropriating ARPA (American Recovery Plan Act) funds in the amount of \$2,000,000 for Clearview Park improvements.

Councilman Alexander made motion to approve; Councilman Hayes seconded. Motion carried with 6 ayes and 0 nays.

9. Ordinance #O2203-13 – First Reading

Councilman Fann presented this ordinance of the City of Gallatin, Sumner County, Tennessee contracting the municipal limits of the City of Gallatin, by removing an approximate 34.7 (+/-) acre portion of territory from the City jurisdiction, located north and west of the CSX railroad right-of-way and including Tax Map 146, Parcel 026.00, 027.00, 028.00, 028.02, 041.00 and 042.00 and adjacent Avondale Road and SR 386 rights-of-way; repealing conflicting ordinances; providing for severability, and providing for an effective date. (ANNX-2022-0022)

Councilman Fann made motion to approve; Councilman Alexander seconded.

Council discussed.

Councilman Fann withdrew his motion; Councilman Alexander withdrew his second.

City Attorney Susan High-McAuley presented a letter of opposition from homeowner Brenda Valentine of 1285 Avondale Road.

City Planner Bill McCord stated the properties could be changed and added to the urban growth boundary.

Council discussed.

Councilman Overton made motion to amend to add to urban growth boundary; Councilwoman Love seconded.

Council discussed.

Councilman Overton withdrew his motion; Councilwoman Love withdrew her second.

Council took no action and instructed City Planner Bill McCord to start the process to add these properties back to the urban growth boundary and bring back to council.

10. Ordinance #O2203-16 – First Reading

Councilwoman Love presented this ordinance appropriating \$32,150.00 from various budget lines for Gallatin EDA vehicle purchase.

Councilwoman Love made motion to approve; Councilwoman George seconded. Motion carried with 6 ayes and 0 nays.

11. Ordinance #O2204-18 – First Reading

Councilman Overton presented this ordinance appropriating \$687,741.00 from Donations from Businesses to Gateway Drive Extension Construction.

Councilman Overton made motion to approve; Councilman Fann seconded.

EDA Director James Fenton explained the reason for this change and confirmed that META is paying for the construction.

Councilwoman George stated that META paid approximately four million dollars for the extension of Gateway Drive and created another needed safety access to the industrial center.

Mayor called for the vote. Motion carried with 6 ayes and 0 nays.

12. Resolution #R2204-36

Councilwoman George presented this resolution of the City of Gallatin, Tennessee to participate in the Community Development Block Grant program administered by the Greater Nashville Regional Council.

Councilwoman George made motion to approve; Councilwoman Love seconded. Motion carried with 6 ayes and 0 nays.

Other Business

Mayor opened other business.

- Mayor presented an application from Rose Mont Restoration Foundation for a special occasion license to sell alcohol at fundraising events.

Councilman Hayes made motion to approve; Councilwoman George seconded.

Councilwoman Love and Councilwoman George disclosed they are both on the board for Rose Mmont Restoration, Inc.

Mayor called for the vote. Motion carried with 6 ayes and 0 nays.

- Mayor presented a road closure application from Gallatin First United Methodist Church on April 15, 2022.

Councilman Hayes made motion to approve; Councilwoman Love seconded. Motion carried with 6 ayes and 0 nays.

- City Attorney Susan High-McAuley asked for a formal motion to file suit for Fire Hall #5 for cost recoveries.

Councilman Overton made motion to approve; Councilman Alexander seconded. Motion carried with 6 ayes and 0 nays.

With no one else wishing to speak other business was closed.

Public Recognition on Non-Agenda-Related Items

Mayor opened public recognition on non-agenda-related items.

- Pascal Jouvence of 1335 Long Hollow Pike provided handouts and pictures of sign violations and asked Gallatin Police Department to handle.

With no one else wishing to speak public recognition on non-agenda-related items was closed.

Adjourn

Councilman Overton made motion to adjourn; Councilman Alexander seconded. Motion carried with 6 ayes and 0 nays.

Mayor adjourned the meeting at 7:31 P.M. without objection.

Mayor Paige Brown

Deputy Clerk Danielle Alexander

ORDINANCE NO. 02203-12

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING 14.67 +/- ACRES FROM THE R-10 MEDIUM DENSITY RESIDENTIAL DISTRICT TO R-8 PRD – MEDIUM DENSITY RESIDENTIAL PLANNED RESIDENTIAL DEVELOPMENT DISTRICT WITH A PRELIMINARY MASTER DEVELOPMENT PLAN FOR THE HOLLAND PROPERTY, LOCATED WEST OF CENTER STREET AND NORTH OF DEMOSS STREET; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the owner of the property and the City of Gallatin submitted an application to rezone 14.67 +/- acres of a portion of a parcel with a Preliminary Master Development Plan for Holland Property, located in the City of Gallatin, Tennessee; and

WHEREAS, the zoning map amendment conforms to the general plan of the area including the established Town Neighborhood Revitalization Character Area of the Gallatin on the Move 2020 Plan and that the public necessity, convenience, and general welfare, will be served by approving the proposed amendment; and

WHEREAS, the property proposed for rezoning has adequate public utilities, infrastructure and private or municipal services necessary to serve the existing and proposed development and population permitted by the requested zoning or such necessary services and facilities will be provided upon development of the property; and

WHEREAS, the rezoning will be compatible with the surrounding environment and will protect the public health, safety and welfare and will not be injurious to other property or improvements in the area in which the property is located; and

WHEREAS, the Gallatin Municipal Planning Commission reviewed and recommended approval of the proposed rezoning with Preliminary Master Development Plan in GMPC Resolution No. 2022-004; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tenn. Code Ann. § 13-7-203; and

WHEREAS, the City Council approved by majority vote of the members present the rezoning request of the described property; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby rezone 14.67 +/- acres, as described in Exhibit 'A' and approves the Preliminary Master Development Plan for Holland Property as described in Exhibit 'B'.

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's Official Zoning Atlas to show the classification for the area as hereby rezoned.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This ordinance shall become effective immediately upon passage, the public welfare requiring such.

PASSED FIRST READING: March 15, 2022.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MACAULEY
CITY ATTORNEY

Exhibit A: Legal Description
Exhibit B: Description of PMDP

EXHIBIT 'A'

HOLLAND PROPERTY - 14.67 +/- ACRES

From R10–Medium Density Residential to R-8 (PRD) – Medium Density Planned Residential Development

SITUATED on the north side of Gallatin, Sumner County, Tennessee, on the west side of Center Street, north of Demoss Street, and on the east side of East Camp Creek;

BEING property of record in Record Book (RB) 4250 Page (PG) 173, also known as Parcel 24.00 of Tax Map 113G Group D of the Sumner County Tax Assessor, being more particularly described as follows:

BEGINNING at an existing capped iron pin (RLS 2053), said pin being in the western boundary of Lake Street, being the northeast corner of the Gallatin Housing Authority property of DB 430 PG 388, and being the TRUE POINT OF BEGINNING,

THENCE with the Gallatin Housing Authority property the next three calls:

N 83°11'14" W a DISTANCE of 256.95' to a point;

N 08°29'26" E a DISTANCE of 112.41' to a point;

N 44°49'34" W a DISTANCE of 36.28' to a point in the center of East Camp Creek;

THENCE with the eastern boundary of the Ray Bowles Family Trust of RB3698 PG 195 the next four calls:

N 43°27'00" E a DISTANCE of 5.97' to a point;

N 27°55'22" E a DISTANCE of 29.94' to a point;

N 03°18'43" E a DISTANCE of 115.91' to a point;

N 08°14'49" W a DISTANCE of 40.26' to a point;

THENCE severing the lands of Holland RB 4250 PG 173 the next six calls;

N 33°26'23" E a DISTANCE of 87.99' to a point;

N 08°43'40" E a DISTANCE of 99.94' to a point;

N 44°22'03" E a DISTANCE of 111.60' to a ; point;

N 51°12'28" E a DISTANCE of 180.87' to a point;

N 63°38'40" E a DISTANCE of 367.97' to a point;

N 47°31'40" E a DISTANCE of 257.88' to a capped (RLS 910) iron pin found in the line of Holland property of RB 4250 PG 173 and Holland property of RB 3446 PG 243;

THENCE with above mentioned Hollands line the following two calls;

N 52°40'12" E a DISTANCE of 156.26' to a capped (RLS 910) iron pin found;

S 07°18'23" W a DISTANCE of 156.86' to a found iron pin, said pin being the northwest corner of William and Stephanie Hogin of RB 5 PG 417;

THENCE with Hogin the next two calls:

S 07°02'59" W a DISTANCE of 261.37' to a found iron pin;

S 83°10'59" E a DISTANCE of 51.27' to a capped iron pin found, said pin being the northwest corner of Lot 5 of Section 8 Clearview Heights Subdivision of PB 10 PG 11;

THENCE with above mentioned Lot 5 the next two calls:

S 06°50'18" W a DISTANCE of 149.98' to a found iron pin;

S 83°06'06" E a DISTANCE of 59.86' to a capped (RLS 2053) iron pin found;

THENCE with the right of way of Center Street the next two calls:

S 07°31'55" W a DISTANCE of 49.95' to a capped (RLS 2053) iron pin found;

N 83°14'54" W a DISTANCE of 30.38' to a concrete monument found;

THENCE with Lots 1-3 of Section 9 of Clearview Heights Subdivision of PB 17 PG 149 the next three calls:

N 83°09'39" W a DISTANCE of 99.62' to a found iron pin;

S 07°37'13" W a DISTANCE of 289.41' to a capped (RLS 2053) iron pin found;

S 82°33'54" E a DISTANCE of 98.65' to a found iron pin;

THENCE with the right of way of Carson Street next three calls:

S 81°41'57" E a DISTANCE of 31.54' to a iron pin set;

S 07°50'14" W a DISTANCE of 49.69' to a capped (RLS 2053) iron pin found;

N 82°59'22" W a DISTANCE of 30.05' to a concrete monument with cap (RLS 1571) found;

THENCE with Lot 1 of Clearview Heights Section 10 of PB 19 PG 136 the next two calls:

N 82°17'00" W a DISTANCE of 54.98' to a found iron pin;

S 07°38'58" W a DISTANCE of 154.18' to a found iron pin;

THENCE with Block L of Clearview Heights Addition No. 4 of PB 1 PG 159 N 83°53'29" W a DISTANCE of 479.56' to a capped (RLS 2053) iron pin found;

THENCE N 83°44'50" W a DISTANCE of 75.51' to a capped (RLS 2053) iron pin found;

THENCE S 07°31'34" W a DISTANCE of 105.01' to the TRUE POINT OF BEGINNING.

Above description containing 14.67 Acres (638,856 Square Feet).

Bearings based on Tennessee State Plane (NAD 83) through the Tennessee Geodetic Reference Network.

All recorded documents referenced above are from the Registers Office of Sumner County, Tennessee. "RB" stands for "Record Book", "DB" stands for "Deed Book", and "PB" stands for "Plat Book".

All "capped iron pin set" are ½' iron rebar pins with a red cap marked "Wilkinson RLS 2776".

This description was prepared by GreenLID Design, 114 B West Main Street, Gallatin, TN 37066; based on survey performed on 10-13-2021, job number 21.107G, and certified by John Zachary Wilkinson, TN RLS # 2776.

EXHIBIT 'B'

The rezoning for the Holland Property shall be substantially consistent with the Preliminary Master Development Plan for the Holland Property, consisting of a six (6) sheet plan, prepared by GreenLID Design, LLC of Gallatin, TN, with project number 21.107G, dated November 8, 2021, with a final revision date of March 2, 2022, and two (2) sheets of architectural renderings/materials, with the following conditions:

1. Add a 20 feet wide greenway connector easement in Open Space Tract A, west of Lake Street, to the western property boundary.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

MARCH 8, 2022

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

An Ordinance No. O2203-12 of the City of Gallatin, Sumner County, Tennessee, rezoning 14.67 +/- acre portion of a parcel from the R10 - Medium Density Residential District to the R-8 PRD – Medium Density Residential Planned Residential Development District with a Preliminary Master Development Plan for the Holland Property.

SUMMARY:

An Ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning 14.67 +/- acres portion of a parcel from the R10 - Medium Density Residential District to the R-8 PRD – Medium Density Residential Planned Residential Development District with a Preliminary Master Development Plan for the Holland Property, located west of Center Street and north of Demoss Street; authorizing the revision to the Official Zoning Atlas; repealing conflicting ordinances; providing for severability; and providing an effective date.

RECOMMENDATION:

On February 28, 2028, the Gallatin Municipal Planning Commission approved GMPC Resolution No. 2022-004 recommending approval of the rezoning and master development plan (ZONE-2021-0060).

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. 02203-15

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, APPROVING AN AMENDED PRELIMINARY MASTER DEVELOPMENT PLAN FOR LOWE'S AND A PRELIMINARY MASTER DEVELOPMENT PLAN FOR DOUBLE STAR HOTEL, A FOUR (4) STORY, 71,876 SQUARE FOOT HOTEL, ON A 3.76 +/- ACRE LOT (TAX MAP 136, PARCEL 038.00), LOCATED SOUTH OF NASHVILLE PIKE AND EAST OF BROWNS LANE; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the applicant submitted a complete application for an Amended Preliminary Master Development Plan for Lowe's and a Preliminary Master Development Plan for Double Star Hotel on a 3.76 +/- acre lot (Tax Map 136, Parcel 038.00), located south of Nashville Pike and east of Browns Lane in Gallatin, Tennessee; and

WHEREAS, the property is currently zoned PGC–Planned General Commercial, which permits transient habitation uses; and

WHEREAS, the Gallatin Municipal Planning Commission reviewed and recommended approval of the proposed Amended Preliminary Master Development Plan as a major amendment in GMPC Resolution No. 2022-029; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tennessee Code Annotated, Section 13-7-203; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby approve the Amended Preliminary Master Development Plan for Lowe's, and a Preliminary Master Development Plan for Double Star Hotel on a 3.76 +/- acre lot, zoned PGC–Planned General Commercial District, as described in Exhibit 'A'.

Section 2. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 3. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provision or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 4. This Ordinance shall take effect upon final passage, the public welfare requiring such.

PASSED FIRST READING: March 15, 2022.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MACAULEY
CITY ATTORNEY

Exhibit A: Description of PMDP with conditions
Exhibit B: Legal Description

EXHIBIT 'A'

The Amended Preliminary Master Development Plan for Lowe's and Preliminary Master Development Plan for Double Star Hotel consists of a six (6) sheet plan, prepared by GreenLID Design, of Gallatin TN, with Project Number 21.146G dated January 13, 2022, with a revision date of February 9, 2022, and architectural elevations for Staybridge Suites, consisting of five (5) sheets, prepared by Donovan and Donovan of Vincennes, Indiana with Project No. D2021-BD dated December 2021 with the following conditions:

1. Easement document needs to be recorded for adjacent development pond.
2. Add Stormwater to the list of utility owners.
3. Indicate a perimeter fence on the development site only.
4. Correct contour elevations on plan sheets.
5. Provide a copy of TDEC Notice of Coverage to the Engineering Division for review and approval prior to the issuance of any permits.
6. Submit a PDF and DWG of the PMDP to the Planning Department.
7. Submit for and receive a building permit consistent with the submitted architecture for the PMDP.

EXHIBIT 'B'

LAND in Sumner County, Tennessee, being Lot Nos. 3 on the Final Subdivision Plat, Lowe's Home Centers, Inc., as shown on plat of record in Plat Book 22, Page 80 & 81, in the Register's Office for Sumner County, Tennessee, to wit:

BEGINNING AT A PK NAIL SET IN THE EAST RIGHT OF WAY LINE OF BROWNS LANE, SAID PK NAIL BEING THE NORTHWEST CORNER OF LOT 3, AS SHOWN ON PLAT BOOK 22, PAGE 80-81 AND THE SOUTHWEST CORNER OF LOT 4 OF SAID PLAT; THENCE LEAVING SAID RIGHT OF WAY LINE WITH SAID LOT 4, AS FOLLOWS: N 63°41'15" E A DISTANCE OF 37.65 FEET TO A 1/2" IRON PIN SET; THENCE WITH A CURVE TURNING TO THE LEFT WITH AN ARC LENGTH OF 104.32 FEET WITH A RADIUS OF 200.00 FEET WITH A CHORD BEARING OF N 48°44'41" E, WITH A CHORD LENGTH OF 103.14 FEET 1/2" IRON PIN SET; THENCE WITH A REVERSE CURVE TURNING TO THE RIGHT WITH AN ARC LENGTH OF 44.60 FEET WITH A RADIUS OF 200.00 FEET WITH A CHORD BEARING OF N 40°11'23" E, WITH A CHORD LENGTH OF 44.51 FEET TO A 1/2" IRON PIN SET; THENCE WITH LOT 1 OF SAID PLAT S 41°05'45" E A DISTANCE OF 742.71 FEET TO A 1/2" IRON PIN SET; THENCE WITH LOT 2 OF SAID PLAT, AS FOLLOWS: S 48°50'02" W A DISTANCE OF 65.54 FEET TO 1/2" IRON PIN SET; THENCE S 79°10'10" W A DISTANCE OF 72.24 FEET TO A 1/2" IRON PIN FOUND; THENCE WITH A CURVE TURNING TO THE RIGHT WITH AN ARC LENGTH OF 67.15 FEET WITH A RADIUS OF 87.00 FEET WITH A CHORD BEARING OF N 77°52'36" W, WITH A CHORD LENGTH OF 65.49 FEET 1/2" IRON PIN FOUND; THENCE N 55°34'35" W A DISTANCE OF 15.54 FEET TO A 1/2" IRON PIN FOUND; THENCE WITH A CURVE TURNING TO THE LEFT WITH AN ARC LENGTH OF 164.37 FEET WITH A RADIUS OF 157.00 FEET WITH A CHORD BEARING OF N 85°53'50" W, WITH A CHORD LENGTH OF 156.96 FEET TO A 1/2" IRON PIN FOUND; THENCE S 64°10'23" W A DISTANCE OF 44.97 FEET TO A CONCRETE MONUMENT FOUND IN THE EAST RIGHT OF WAY LINE OF SAID BROWNS LANE; THENCE WITH SAID RIGHT OF WAY N 25°49'32" W A DISTANCE OF 537.20 FEET TO THE POINT OF BEGINNING, HAVING AN AREA OF 170589 SQUARE FEET, 3.916 ACRES, MORE OR LESS.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

MARCH 8, 2022

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

An Ordinance No. O2203-15 of the City of Gallatin, Sumner County, Tennessee, amending the Lowe's Preliminary Master Development Plan and approving a new Preliminary Master Development Plan for Double Star Hotel.

SUMMARY:

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, APPROVING AN AMENDED PRELIMINARY MASTER DEVELOPMENT PLAN FOR LOWE'S AND A PRELIMINARY MASTER DEVELOPMENT PLAN FOR DOUBLE STAR HOTEL, A FOUR (4) STORY, 71,876 SQUARE FOOT HOTEL, ON A 3.76 +/- ACRE LOT (TAX MAP 136, PARCEL 038.00), LOCATED SOUTH OF NASHVILLE PIKE AND EAST OF BROWNS LANE; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

RECOMMENDATION:

On February 28, 2022, the Gallatin Municipal Planning Commission approved GMPC Resolution No. 2022-029 recommending approval of the amended and new master development plans (MDP-2022-0229)

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE APPROPRIATING \$32,150.00 FROM VARIOUS BUDGET LINES
FOR GALLATIN EDA VEHICLE PURCHASE

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$32,150.00 is hereby appropriated to 110-47100-941, Transportation Equipment, from the following Economic Development Agency accounts:

\$ 7,000.00	110-47100-111	Salaries
\$ 800.00	110-47100-141	FICA
\$12,500.00	110-47100-142	Health & Dental
\$ 600.00	110-47100-143	Retirement
\$11,250.00	110-36710-256	Woolhawk

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect from and after its final passage, the public welfare requiring such.

PASSED FIRST READING: April 5, 2022.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

March 22, 2022

DEPARTMENT: **Economic Development**

AGENDA #

SUBJECT:

ORDINANCE #2203-16 APPROPRIATING \$32,150.00 FROM VARIOUS BUDGET LINES FOR GALLATIN EDA VEHICLE PURCHASE

SUMMARY:

Gallatin EDA's budget this year included funds to continue leasing a vehicle. However, mid-way through the year, because of changes in requirements for financial reporting, EDA was no longer allowed to lease a vehicle and instead had to purchased one. The unanticipated expense was \$32,150 more than budgeted for leasing. This ordinance replaces these funds mostly through savings from a position being vacant for two months and about one-third from Woolhawk's annual payment to the city covering expenses related to oversight and construction of their buildings.

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE APPROPRIATING \$687,741.00 FROM DONATIONS FROM
BUSINESSES TO GATEWAY DRIVE EXTENSION CONSTRUCTION

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of
\$687,741.00 is hereby appropriated from the Donations from Businesses revenue account #110-
36710-256 to the Economic Development Agency expense account #110-47100-931-256 for
construction of the Gateway Drive Extension for Project Wool Hawk.

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this
Ordinance shall take effect from and after its final passage, the public welfare requiring such.

PASSED FIRST READING: April 5, 2022.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

RESOLUTION NO. R2203-30

A RESOLUTION OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, ADOPTING A PLAN OF SERVICES UPON THE ANNEXATION OF A .70± MILE LONG SEGMENT OF BIG STATION CAMP BOULEVARD RIGHT-OF-WAY, EXTENDING FROM VIETNAM VETERANS BOULEVARD (SR 386) TO SOUTH OF LAKELAND DRIVE, COMPRISING APPROXIMATELY 13.6 ACRES, AND PROVIDING FOR AN EFFECTIVE DATE (ANNX-2022-0021).

WHEREAS, the City of Gallatin received a petition from Sumner County, the owner of the rights-of-way, for the annexation a 0.70± mile segment of Big Station Camp Boulevard right-of-way, totaling 13.6+/- acres, which is contiguous to the City; and

WHEREAS, the right-of-way proposed for annexation into the City of Gallatin is located within the City of Gallatin Urban Growth Boundary; and

WHEREAS, Tennessee Code Annotated § 6-5-104 permits a municipality to annex territory within the municipality's Urban Growth Boundary and a petition was submitted by the City of Gallatin for consideration by the City and is approved; and

WHEREAS, Tennessee Code Annotated, § 6-51-102(b) requires that a Plan of Service be adopted by the governing body of a City prior to the passage of an annexation resolution; and,

WHEREAS, the Gallatin Municipal Planning Commission, pursuant to T.C.A. § 6-51-102(b)(4), § 6-51-107, and § 13-4-103, reviewed and recommended approval of this Plan of Service, as contained in this Resolution, and approved by the GMPC in Resolution No. 2022-019

NOW, THEREFORE, BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, AS FOLLOWS:

SECTION 1. Pursuant to the provisions of Section 6-51-102(b), Tennessee Code Annotated, there is hereby adopted, for the area bounded as described in Exhibit 'A', the Plan of Services described in Exhibit 'B':

SECTION 2. This Resolution shall be effective upon adoption, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit 'A' – Legal Description of the annexed territory
Exhibit 'B' – Plan of Service

EXHIBIT 'A'

Big Station Camp Boulevard Annexation Legal Description

Being a tract of land lying in Sumner County Tennessee, also being the existing right-of-way of Big Station Camp Boulevard and being more particularly described as follows:

BEGINNING at a point in the easterly right-of-way of Big Station Camp Boulevard, said point being eight hundred feet north of the northerly right-of-way of U.S. Highway 31E (State Route 6, Nashville Pike);

Thence continuing along with the following twenty-two calls: S 61°56'44" W a distance of 99.90' to a point;

Thence with a curve turning to the right with an arc length of 164.67', with a radius of 789.30', with a chord bearing of N 25°50'16" W, with a chord length of 164.37', to a point;

Thence N 22°45'29" W a distance of 164.29' to a point;

Thence with a curve turning to the right with an arc length of 237.92', with a radius of 814.30', with a chord bearing of N 00°08'02" E, with a chord length of 237.07', to a point;

Thence N 14°12'39" E a distance of 251.42' to a point;

Thence with a curve turning to the left with an arc length of 519.49', with a radius of 689.30', with a chord bearing of N 13°05'10" W, with a chord length of 507.28', to a point;

Thence N 34°40'35" W a distance of 1448.43' to a point;

Thence S 55°19'25" W a distance of 80.00' to a point;

Thence with a curve turning to the left with an arc length of 392.22', with a radius of 2734.79', with a chord bearing of N 38°47'05" W, with a chord length of 391.88', to a point;

Thence N 42°53'36" W a distance of 169.09' to a point;

Thence N 42°53'36" W a distance of 493.64' to a point;

Thence N 50°34'55" E a distance of 260.09' to a point;

Thence S 42°56'28" E a distance of 492.22' to a point;

Thence S 42°53'36" E a distance of 154.36' to a point;

Thence with a curve turning to the right with an arc length of 429.51', with a radius of 2994.79', with a chord bearing of S 38°47'05" E, with a chord length of 429.14', to a point;

Thence S 55°19'25" W a distance of 80.00' to a point;

Thence S 34°40'35" E a distance of 1445.43' to a point;

Thence with a curve turning to the right with an arc length of 594.85', with a radius of 789.30', with a chord bearing of S 13°05'10" E, with a chord length of 580.87', to a point;
Thence S 08°30'15" W a distance of 250.18' to a point;

Thence with a curve turning to the left with an arc length of 155.10', with a radius of 689.30', with a chord bearing of S 02°04'18" W, with a chord length of 154.77', to a point;

Thence S 12°06'44" E a distance of 185.91' to a point;

Thence with a curve turning to the left with an arc length of 153.45', with a radius of 689.30', with a chord bearing of S 26°14'20" E, with a chord length of 153.14', to a point, which is the point of beginning, having an area of 564,165 square feet, 12.95 acres more or less.

All bearings based on Tennessee State Plane (NAD 83)

This description was prepared by City of Gallatin Engineering Division, certified by Brian M. Reifschneider RLS #2487, and dated April 13, 2022.

CITY OF GALLATIN BIG STATION CAMP BOULEVARD ANNEXATION

STATE ROUTE 386
VIETNAM VETERANS BOULEVARD

CSX TRANSPORTATION
RAILROAD



GRAPHIC SCALE



SCALE: 1" = 400'

TECHNICAL SURVEYING

CURVE TABLE				
CURVE	RADIUS	ARC LENGTH	CHORD LENGTH	CHORD BEARING
C1	789.30'	164.67'	164.37'	N 25°50'16" W
C2	814.30'	237.92'	237.07'	N 00°08'02" E
C3	689.30'	519.49'	507.28'	N 13°05'10" W
C4	2734.79'	392.22'	391.88'	N 38°47'05" W
C5	2994.79'	429.51'	429.14'	S 38°47'05" E
C6	789.30'	594.85'	580.87'	S 13°05'10" E
C7	689.30'	155.10'	154.77'	S 02°04'18" W
C8	689.30'	153.45'	153.14'	S 26°14'20" E

LINE TABLE	
LINE	DISTANCE
L1	S 61°56'44" W 99.90'
L2	N 22°45'29" W 164.29'
L3	N 14°12'39" E 251.42'
L4	S 55°19'25" W 80.00'
L5	N 42°53'36" W 169.09'
L6	N 42°53'36" W 493.64'
L7	N 50°34'55" E 260.09'
L8	S 42°56'28" E 492.22'
L9	S 42°53'36" E 154.36'
L10	S 55°19'25" W 80.00'
L11	S 08°30'15" W 250.18'
L12	S 12°06'44" E 185.91'



ENGINEERING DIVISION
132 WEST MAIN STREET
GALLATIN, TN 37066
(615) 451-5965
www.gallatinonthemove.com

LOWER STATION CAMP
CREEK ROAD

STATION CAMP
CREEK

U.S. HIGHWAY 31E
(STATE ROUTE 6, NASHVILLE PIKE)

OAKFIELD BOULEVARD

BIG STATION
CAMP BOULEVARD

TOTAL AREA
564,165 SQ. FT.
12.95 ACRES

LAKELAND DRIVE

POINT OF
BEGINNING

EXHIBIT 'B'

PLAN OF SERVICE FOR BIG STATION CAMP BOULEVARD RIGHT-OF-WAY pursuant to Tenn. Code Annotated § 6-51-102(b)

The Plan of Services applies to the segment of Big Station Camp Boulevard right-of-way from the Gallatin City Limits at the SR 386 (Vietnam Veterans Boulevard) east bound ramps southward to an area south of the intersection of Lakeland Drive and Big Station Camp Boulevard

A. Water

Water service is currently provided by White House Utility District in the right-of-way. Water service is available to serve development on adjacent properties through developer-funded and constructed water mains.

B. Sanitary Sewer

Sanitary sewer service is provided by White House Utility District in close proximity to the right-of-way of Big Station Camp Boulevard. However, this service is not necessary to serve the right-of-way segments. Sanitary sewer service can be extend within the right-of-way to accommodate the development adjacent to the right-of-way through a developer-funded sewer line extensions

C. Street Construction and Maintenance

No new public roadways will be constructed as a result of the annexation. Once annexed by the City, the right-of-way, including the existing roadway, drainage, landscaping and bridge over the CSX Railroad, will be maintained by the City of Gallatin.

D. Solid Waste and Refuse Collection

Upon annexation, the City of Gallatin will not collect solid waste for properties located west of and adjacent to the right-of-way since these properties will remain in the unincorporated area or in the City of Hendersonville. The City will provide litter control within the right-of-way.

E. Planning and Zoning Services

Upon annexation, the planning and zoning services of the City of Gallatin are not provided in the annexation area since rights-of-way are not zoned. Planning and zoning services will be provided to the adjacent properties within the city. Sumner County or the City of Hendersonville will retain zoning services to other the properties adjacent to Big Station Camp Boulevard.

F. Building Inspections and Code Enforcement Services

Upon annexation, building and code inspection services will not be provided by the City of Gallatin since the areas proposed for annexation is a right-of-way. Any construction in the right-of-way shall be reviewed and permitted by the Engineering Division and the Public Works Department.

G. Fire Protection

The Gallatin Fire Department will provide fire protection upon the effective date of the annexation within the right-of-way only. If fire hydrants are placed in the right-of-way these will be maintained by the White House Utility District along Big Station Camp Boulevard.

Gallatin Fire Stations #2 and #4 have the appropriate number of personnel, department vehicles, and a convenient location to service the segment of Big Station Camp Boulevard.

H. Police Protection

Upon the effective date of the annexation, police patrol, response to calls, and other routine police services will be provided by the Gallatin Police Department only within the rights-of-way but not to adjacent properties not within the Gallatin city limits. Police patrols are now traversing these segments to serve other portions of the right-of-way and adjacent property within the city.

I. Animal Control

The Public Works Department provides animal control services and enforces the City's animal control ordinances. Upon the effective date of the annexation, this service will be available in the annexation area.

J. Recreational Facilities and Programs

Since the right-of-way contains no taxable or real property, no recreation services are necessary to serve the right-of-way.

K. Street Lighting and Electric Service

Nashville Electric Service currently provides electric services within the right-of-way. The Gallatin Electric Department has not responded for a request for information on the intent to serve the corridor/right-of-way. When provided this will be provided at a future date consistent with Tenn. Code Annotated § 6-51-102 and § 6-51-112.

L. Gas

The Gallatin Public Utilities Department provides natural gas services to residential, business, and industrial customers in the City of Gallatin and outside the City's corporate limits. Gas lines are not necessary to serve the right-of-way. The Gallatin Public Utilities Department may use portions of the rights-of-way to extend natural gas service from existing lines into adjacent properties or within connecting rights-of-way and easements. Upon extension of gas lines by Gallatin Public Utilities, the City will oversee and monitor such lines.

M. School System

The City shall provide written notice to the Sumner County School System of the proposed annexation and prior to the public hearing on the annexation resolution as required by Tenn. Code Annotated, Section 6-51-102(b)(2). The annexation of the right-of-way will not impact school service or capacity.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

MARCH 8, 2022

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

A Resolution of the City of Gallatin, Sumner County, Tennessee, adopting a Plan of Service for a 0.70 mile segment (13.6+/- acres) of Big Station Camp Boulevard public right-of-way, located adjacent to the current city limits, from south of the Vietnam Veterans Parkway to south of the intersection of Lakeland Drive and Big Station Camp Boulevard.

SUMMARY:

A Resolution No. R22Ø3-30 of the City of Gallatin, Sumner County, Tennessee, adopting a Plan of Services upon the Annexation of a .70± mile long segment of Big Station Camp Boulevard right-of-way, extending from Vietnam Veterans Boulevard (SR 386) to south of Lakeland Drive, comprising approximately 13.6+/- acres, and providing for an effective date.

RECOMMENDATION:

On February 28, 2022, the Gallatin Municipal Planning Commission recommended approval of the annexation and Plan of Services in GMPC Resolution No. 2022-019. (ANNX-2022-0021)

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R2203-31

A RESOLUTION OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, ANNEXING OF A .70± MILE LONG SEGMENT OF BIG STATION CAMP BOULEVARD RIGHT-OF-WAY, EXTENDING FROM SOUTH OF VIETNAM VETERANS BOULEVARD (SR 386) TO SOUTH OF THE INTERSECTION OF LAKELAND DRIVE AND BIG STATION CAMP BOULEVARD, COMPRISING APPROXIMATELY 13.6 ACRES; AUTHORIZING THE ANNEXED RIGHT-OF-WAY TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; AUTHORIZING ASSIGNMENT OF ANNEXED AREA TO A COUNCIL DISTRICT; REPEALING CONFLICTING ORDINANCES AND RESOLUTIONS; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the City of Gallatin prepared a petition and provided notice to Sumner County for the annexation of a 0.70± mile segment of the Big Station Camp Boulevard as described in Exhibits 'A' and "B"; and

WHEREAS, the right-of-way is contiguous with the current city boundary of the City of Gallatin and located within the City of Gallatin Urban Growth Boundary; and

WHEREAS, a public hearing was held following public notice as prescribed by Tenn. Code Ann. § 6-51-102; and

WHEREAS, the City of Gallatin deems it reasonable and mutually beneficial to annex the territory described herein; and

WHEREAS, the Gallatin Municipal Planning Commission has by a majority vote recommended approval of the proposed annexation and Plan of Service to the affected area; and

WHEREAS, the City Council of the City of Gallatin approved a Plan of Service for the annexation area as described in Resolution No. R2203-30.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby annex the following right-of-way as described in Exhibit 'A' and indicated on the maps in Exhibit 'B';

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's boundaries and the Official Zoning Atlas to show the classification for the area as being annexed into the City as shown on Exhibit 'A' and Exhibit 'B' attached hereto.

Section 3. The rights-of-way described in Exhibit 'A' and depicted in Exhibit 'B' shall become part of City Council District 4.

Section 4. All ordinances or resolutions or parts of ordinances or resolutions in conflict with the provisions of this resolution are hereby repealed to the extent of such conflict.

Section 5. If any provision of this resolution or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of the resolution which can be given effect without the invalid provision or application, and to this end the provisions of this resolution are declared severable.

Section 6. This resolution shall take effect after final passage, the public welfare requiring such, per Tenn. Code Ann. § 6-51-104.

IT IS SO ORDERED.

PRESENT AND VOTING.

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit 'A' – Legal Description of annexation territory
Exhibit 'B' – Map of the annexation territory

EXHIBIT 'A'

All of a segment of Big Station Camp Boulevard right-of-way extending, southward approximately 0.70± miles from the Gallatin City Limits located south of Vietnam Veterans Parkway (SR 386) to an area south of the intersection of Lakeland Drive to the Gallatin City Limits.

Big Station Camp Boulevard Annexation Legal Description

Being a tract of land lying in Sumner County Tennessee, also being the existing right-of-way of Big Station Camp Boulevard and being more particularly described as follows:

BEGINNING at a point in the easterly right-of-way of Big Station Camp Boulevard, said point being eight hundred feet north of the northerly right-of-way of U.S. Highway 31E (State Route 6, Nashville Pike);

Thence continuing along with the following twenty-two calls: S 61°56'44" W a distance of 99.90' to a point;

Thence with a curve turning to the right with an arc length of 164.67', with a radius of 789.30', with a chord bearing of N 25°50'16" W, with a chord length of 164.37', to a point;

Thence N 22°45'29" W a distance of 164.29' to a point;

Thence with a curve turning to the right with an arc length of 237.92', with a radius of 814.30', with a chord bearing of N 00°08'02" E, with a chord length of 237.07', to a point;

Thence N 14°12'39" E a distance of 251.42' to a point;

Thence with a curve turning to the left with an arc length of 519.49', with a radius of 689.30', with a chord bearing of N 13°05'10" W, with a chord length of 507.28', to a point;

Thence N 34°40'35" W a distance of 1448.43' to a point;

Thence S 55°19'25" W a distance of 80.00' to a point;

Thence with a curve turning to the left with an arc length of 392.22', with a radius of 2734.79', with a chord bearing of N 38°47'05" W, with a chord length of 391.88', to a point;

Thence N 42°53'36" W a distance of 169.09' to a point;

Thence N 42°53'36" W a distance of 493.64' to a point;

Thence N 50°34'55" E a distance of 260.09' to a point;

Thence S 42°56'28" E a distance of 492.22' to a point;

Thence S 42°53'36" E a distance of 154.36' to a point;

Thence with a curve turning to the right with an arc length of 429.51', with a radius of 2994.79', with a chord bearing of S 38°47'05" E, with a chord length of 429.14', to a point;

Thence S 55°19'25" W a distance of 80.00' to a point;
Thence S 34°40'35" E a distance of 1445.43' to a point;

Thence with a curve turning to the right with an arc length of 594.85', with a radius of 789.30', with a chord bearing of S 13°05'10" E, with a chord length of 580.87', to a point;
Thence S 08°30'15" W a distance of 250.18' to a point;

Thence with a curve turning to the left with an arc length of 155.10', with a radius of 689.30', with a chord bearing of S 02°04'18" W, with a chord length of 154.77', to a point;

Thence S 12°06'44" E a distance of 185.91' to a point;

Thence with a curve turning to the left with an arc length of 153.45', with a radius of 689.30', with a chord bearing of S 26°14'20" E, with a chord length of 153.14', to a point, which is the point of beginning, having an area of 564,165 square feet, 12.95 acres more or less.

All bearings based on Tennessee State Plane (NAD 83)

This description was prepared by City of Gallatin Engineering Division, certified by Brian M. Reifschneider RLS #2487, and dated April 13, 2022.

EXHIBIT "B"

CITY OF GALLATIN BIG STATION CAMP BOULEVARD ANNEXATION

STATE ROUTE 386
VIETNAM VETERANS BOULEVARD

CSX TRANSPORTATION
RAILROAD



GRAPHIC SCALE



SCALE: 1" = 400'

CURVE TABLE				
CURVE	RADIUS	ARC LENGTH	CHORD LENGTH	CHORD BEARING
C1	789.30'	164.67'	164.37'	N 25°50'16" W
C2	814.30'	237.92'	237.07'	N 00°08'02" E
C3	689.30'	519.49'	507.28'	N 13°05'10" W
C4	2734.79'	392.22'	391.88'	N 38°47'05" W
C5	2994.79'	429.51'	429.14'	S 38°47'05" E
C6	789.30'	594.85'	580.87'	S 13°05'10" E
C7	689.30'	155.10'	154.77'	S 02°04'18" W
C8	689.30'	153.45'	153.14'	S 26°14'20" E

LINE TABLE	
LINE	DISTANCE
L1	S 61°56'44" W 99.90'
L2	N 22°45'29" W 164.29'
L3	N 14°12'39" E 251.42'
L4	S 55°19'25" W 80.00'
L5	N 42°53'36" W 169.09'
L6	N 42°53'36" W 493.64'
L7	N 50°34'55" E 260.09'
L8	S 42°56'28" E 492.22'
L9	S 42°53'36" E 154.36'
L10	S 55°19'25" W 80.00'
L11	S 08°30'15" W 250.18'
L12	S 12°06'44" E 185.91'



ENGINEERING DIVISION
132 WEST MAIN STREET
GALLATIN, TN 37066
(615) 451-5965
www.gallatinontheroad.com

LOWER STATION CAMP
CREEK ROAD

OAKFIELD BOULEVARD

BIG STATION
CAMP BOULEVARD

TOTAL AREA
564,165 SQ. FT.
12.95 ACRES

LAKELAND DRIVE

POINT OF
BEGINNING

STATION CAMP
CREEK

U.S. HIGHWAY 31E
(STATE ROUTE 6 NASHVILLE PIKE)

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

MARCH 8, 2022

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

A Resolution of the City of Gallatin, Sumner County, Tennessee, annexing a 0.70 mile segment (13.6+/- acres) of Big Station Camp Boulevard public right-of-way, located adjacent to the current city limits, from south of the Vietnam Veterans Parkway to south of the intersection of Lakeland Drive and Big Station Camp Boulevard.

SUMMARY:

A Resolution No. R2203-31 of the City of Gallatin, Sumner County, Tennessee, annexing a 0.70 mile segment (13.6+/- acres) of Big Station Camp Boulevard public right-of-way into the City of Gallatin; authorizing the annexed right-of-way to be indicated on the Official Zoning Atlas; assigning the annexed area to a Council District; repealing conflicting ordinances; providing for severability; and providing an effective date.

RECOMMENDATION:

On February 28, 2022, the Gallatin Municipal Planning Commission recommended approval of the annexation and Plan of Services in GMPC Resolution No. 2022-019. (ANNX-2022-0021)

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION TEMPORARILY ADJUSTING CERTAIN RATES OF PAY

WHEREAS, in October 2021, the City of Gallatin approved temporary adjustments to certain rates of pay in an effort to lessen the turnover rate and increase recruitment for open positions of certain critical infrastructure jobs with the passage of Amended Resolution R2110-73; and

WHEREAS, two additional job titles have since been created for positions equivalent to positions included in the original resolution;

NOW THEREFORE BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, hourly rates in the amount equivalent to four (4) steps in the current pay grade of the salary chart will be temporarily adjusted for the following job codes through this fiscal year or until the new salary study is implemented, whichever occurs first;

Job	Description
1527	AMI SERVICE TECHNICIAN-GAS
1559	MAINTENANCE MECHANIC - WWTP

BE IT FURTHER RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that this Resolution shall be retroactive to the pay period beginning October 24, 2021, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING

AYE:

NAY:

ABSTAIN:

DATED:

MAYOR PAIGE BROWN

APPROVED AS TO FORM:

ATTEST:

CONNIE KITTRELL
CITY RECORDER

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

April 12, 2022

DEPARTMENT: **Human Resources**

AGENDA #

SUBJECT:

A request for approval of Resolution No. R 2204-37 to temporarily adjust certain rates of pay.

SUMMARY:

Include two additional job titles which are positions equivalent to positions included in the original resolution.

RECOMMENDATION:

Approve

ATTACHMENT:

☒	Resolution
☐	Ordinance

☐	Correspondence
☐	Contract

☐	Bid Tabulation
☐	Other

Approved	☒
Rejected	☐
Deferred	☐

Notes:

RESOLUTION RE-APPOINTING RICHIE HARVILLE AS BOARD MEMBER OF THE
GALLATIN ECONOMIC DEVELOPMENT AGENCY BOARD

WHEREAS, Ordinance O9903-024 created an Economic Development Agency for
the City of Gallatin, Tennessee; and

WHEREAS, Ordinance O0912-89 provided for five Board members to serve three
year terms, with staggered terms such that no more than two Board members' terms would
expire in the same calendar year; and

WHEREAS, Richie Harville currently serves on the Board of the Economic
Development Agency with his term expiring May 4, 2022;

NOW THEREFORE BE IT RESOLVED that the City Council re-appoint Richie
Harville to a three-year term to expire on May 4, 2025.

BE IT FURTHER RESOLVED that this Resolution shall take effect from and after its
final passage the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

APPROVED AS TO FORM:

CONNIE KITTRELL
CITY RECORDER

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

April 12, 2022

DEPARTMENT: **Economic Development**

AGENDA #

SUBJECT:

Resolution R2204-38 Re-appointing Richie Harville to the Gallatin EDA Board

SUMMARY:

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RECOMMENDATION:

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

**RESOLUTION AMENDING GALLATIN PERSONNEL RULES AND REGULATIONS
RELATING TO SICK LEAVE POOL, RULE 16, SECTION 16-3(u)**

WHEREAS, Section 13-104 of the Gallatin Municipal Code provides for amendment of the Personnel Rules; and

WHEREAS, Section 16-3(u), Sick Leave Pool, requires amendment to clarify any ambiguities related to use of time from the sick leave pool so the rule clearly defines that use of time from the sick leave pool may only be used for an employee's personal sickness, illness, injury or other medical condition.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that Rule 16, Sick Leave, Section (u), Sick Leave Pool. of the Gallatin Personnel Rules and Regulations is hereby amended as follows:

1. The words "for illness, injury, sickness or other medical condition of the employee" be added following the words "sick leave" and before the words "to be withdrawn" in the final sentence of the introductory paragraph of Section 16-3(u) so that the paragraph reads as follows:

Rule 16-3 Sick Leave

(u) Sick Leave Pool. A sick leave pool, hereinafter referred to as "the Pool", is established for all employees of the classified service and exempt service as may be applicable, to provide continued income of the Pool member employees when all other of their personal sick leave, compensatory time, and vacation leave balances have been exhausted, and valid reasons exist for additional sick leave for illness, injury, sickness or other medical of the employee to be withdrawn from the Pool's reserves.

2. The words "of the employee" be added following the words "for any one illness or incapacitation" in subsection (5)(A) such that the subsection reads as follows:

(5) Trustee's Action on Requests for Withdrawal of Sick Leave. The Trustees shall review all requests from members of the Pool to withdraw sick leave and shall take one of the following actions within 10 working days of the request:

- (A) Approve the withdrawal of sick leave from the Pool and credit the member's personal sick leave entitlement in the amount necessary for the absence, not to exceed 320 hours for any one illness or incapacitation of the employee (or, 336 hours for those members who work an average 42-hour-per-week schedule, or, 448 hours for those members who work an average 56-hour-per-week schedule). Any amount credited to the member's personal sick leave entitlement and not actually used as sick leave shall be re-deposited to the Pool upon the member's return to work.

BE IT FURTHER RESOLVED that this Resolution shall take effect from and after the date of final passage, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

April 12, 2022

DEPARTMENT: **Human Resources**

AGENDA #

SUBJECT:

A request for approval of Resolution No. R 2204-43 to amend personnel rules and regulations relating to Sick Leave Pool, Rule 16, Section 16-3 (u).

SUMMARY:

Defines that use of time from the sick leave pool may only be used for an employee's personal sickness, illness, injury or other medical condition.

RECOMMENDATION:

Approve

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes: